Mediation Ecosystem in Kenya: Current Trends and Future Prospects

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Abstract

This paper explores the current state of mediation practice and training in Kenya. It examines the legal framework underpinning mediation, including the Constitution of Kenya 2010, the Nairobi Centre for International Arbitration Act, and the Singapore Convention on Mediation. The paper delves into the training and accreditation standards set by the Mediation Accreditation Committee and the Nairobi Centre for International Arbitration, comparing them to global standards. Furthermore, the paper identifies key challenges facing mediation practice and training in Kenya, such as fragmented institutional development, lack of standardization, and insufficient trained personnel. To address these challenges, the National ADR Policy is analyzed, focusing on its strategies to strengthen the institutional framework, legal framework, and capacity building initiatives. The policy aims to promote the use of mediation, improve the quality of mediation services, and enhance access to justice for all.

1.0 Introduction

Mediation as a dispute resolution mechanism is becoming increasingly recognized in Kenya and internationally. As compared to litigation, Mediation is quicker, cheaper, and less adversarial [1].

In Kenya, Mediation has played a crucial role in reducing caseloads in the Judiciary, promoting access to justice as enshrined in Article 48 of the Constitution of Kenya 2010, and encouraging amicable dispute resolution [2].

In the global arena, there is a surge in cross-border disputes, further underscoring the need for enforcing Mediation Agreements across different jurisdictions. For instance,

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Article 33 of the UN Charter emphasizes the importance of peaceful dispute resolution, encouraging parties to seek solutions through negotiations, mediation, conciliation, arbitration, or judicial settlement before resorting to force. United Nations Convention on International Settlement Agreements Resulting from Mediation (Singapore Convention) provide a framework for enforcing Mediation Agreements 3. However, Kenya has not yet signed the Singapore Convention.

A growing need for mediators in Kenya has led to the emergence of mediation training institutions and Mediators accreditation bodies. This paper aims to explore these issues by examining Kenya's current mediation practice and training ecosystem with a particular focus on challenges and future prospects in line with the National ADR policy.

2.0 Legal Framework for Mediation

Mediation in Kenya is anchored on Article 159(2)(c) of the Constitution of Kenya 2010, Section 5(m) of the Nairobi Centre for International Arbitration Act, 2013 (NCIA Act) and the Civil Procedure Act. At the international level, it is grounded in Article 33 of the United Nations Charter and the Singapore Convention on Mediation.

2.1 The Constitution of Kenya 2010

The Constitution of Kenya 2010 under Article 159(2)(c) mandates the Judiciary to promote the use of ADR, which includes mediation, arbitration, and conciliation and traditional dispute resolution mechanisms. By integrating mediation within the constitutional framework, Kenya underscores the importance of resolving disputes amicably, reducing the burden on the courts, and fostering access to justice.

2.2 Civil Procedure Act

The Civil Procedure Act (CPA) and its accompanying Rules provide a robust framework for the utilization of Alternative Dispute Resolution (ADR) mechanisms in Kenya. Specifically, Section 59 of the CPA empowers courts to refer matters to arbitration, while Sections 59A, 59B, and 59D enable the referral of cases to Mediation. Moreover, the CPA allows for the utilization of any other agreed-upon ADR method, providing flexibility for

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parties to tailor their dispute resolution approach. These provisions have led to the establishment of the Court Annexed Mediation program and the Mediation Accreditation Committee. Additionally, Order 46 Rule 20 of the Civil Procedure Rules grants courts the discretion to employ various ADR methods, further solidifying the role of ADR in Kenya's legal system.

In line with the Constitution of Kenya 2010 under Article 159(2)(c), the Kenyan Judiciary has introduced the Court-Annexed Mediation (CAM) program. This program encourages parties to settle disputes through mediation before proceeding to litigation, thereby lessening the case burden in the courts. The Judiciary has also formed the Mediation Accreditation Committee to set standards for accreditation of Mediators to be listed in its CAM program.

2.3 The Nairobi Centre for International Arbitration Act, 2013

NCIA is a state corporation in Kenya established under the NCIA Act (No. 6 of 2013). NCIA is mandated to promote international commercial arbitration and other forms of ADR. The NCIA provides administrative and technical support for mediation proceedings, making it a central hub for the conduct of mediation in Kenya. This is achieved through Mediation Rules that provide operational guidelines for mediation proceedings under NCIA. One of the Centre's core functions is to provide training and accreditation for mediators and arbitrators.

2.4 Other Acts in Kenya

Other important laws that promote the use of ADR include: The Intergovernmental Relations Act, 2012; the Land Act 2012; The Industrial Court Act, 2011; the Environment and Land Court Act, 2011; Small Claims Act, No 2 of 2016; and The Commission on the Administration of Justice Act, 2011 among others.

2.5 Article 33 of the United Nations Charter

Article 33 of the UN Charter emphasizes the importance of peaceful dispute resolution, encouraging parties to seek solutions through negotiations, mediation, conciliation, arbitration, or judicial settlement before resorting to force. It highlights the value of

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regional arrangements for resolving conflicts when applicable and underscores the UN's commitment to maintaining international peace and security through dialogue and cooperation. This article serves as a foundational principle in promoting peaceful relations among nations through Mediation mechanism.

2.6 The Singapore Convention on Mediation

The United Nations Commission on International Trade Law (UNCITRAL) has developed the UNCITRAL Model Law on International Commercial Mediation and International Settlement Agreements Resulting from Mediation 2018 ("Model Law 2018"). It was designed to assist States in reforming and modernizing their laws on mediation procedure. The law is commonly referred to as the Singapore Convention [3]. This treaty provides a legal framework for the recognition and enforcement of mediation settlement agreements internationally. As a result, Mediation is gaining credibility and attractiveness globally. However, Kenya has not yet signed the Singapore Convention.

3.0 The Need for Mediation Training

Mediation has emerged as one of the most effective and efficient methods of Dispute Resolution in Kenya and internationally. As a result, the need for skilled mediators is growing exponentially due to several key factors:

a. **Court-Annexed Mediation Programs:** Kenyan Courts are referring certain cases to mediation through its Court Annexed Mediation (CAM) program to ease the burden on the Judiciary. This trend has increased the need for qualified mediators who can handle diverse types of disputes ranging from commercial, family and community [4].
b. **Growth in International Trade and Investment:** International conventions such as the Singapore Convention on Mediation are opening a doorway for International Mediation among member states. This law, if adopted by many countries, will increase international trade and Investment leading to disputes [3].
c. **Corporate and Commercial Disputes:** The private sector has increasingly recognized the value of mediation as a quick and cost-effective method of dispute resolution. Corporate and commercial disputes, particularly in industries such as

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construction, finance, and telecommunications, have seen an increase in mediation cases. As a result, there is a growing need for professional mediators with expertise in business processes, contract law, and industry-specific issues. [5]

d. **Social and Community Disputes:** In Kenya, the use of mediation has been crucial in resolving land disputes, family matters, and community conflicts. This has further expanded the scope for mediators, particularly in areas where traditional justice systems or litigation are less effective in fostering long-term solutions [6].

4.0 Mediation Training and Accreditation Bodies

There are two key bodies legally responsible for setting Mediation training and accreditation standards in Kenya: The Judiciary's Mediation Accreditation Committee (MAC) and the Nairobi Centre for International Arbitration (NCIA). Each has developed guidelines to ensure Mediators specifically working with them meet their standards.

4.1 Mediation Accreditation Committee (MAC) Training and Accreditation Standards

The Mediation Accreditation Committee (MAC) was established under the Judiciary of Kenya to set standards for mediator accreditation. Its key functions include specifying requirements for mediator accreditation, defining minimum qualifications and training standards, and informing the public about the qualifications and competencies expected of accredited mediators.

4.2 Nairobi Centre for International Arbitration (NCIA) Guidelines on Empanelment of Mediators

The Nairobi Centre for International Arbitration (NCIA) is a Centre established for the promotion of international commercial arbitration and other forms of dispute resolution mechanism. Section 5 of the NCIA Act 2013 mandates the Centre to provide training and accreditation programs for mediators and arbitrators and to educate the public on Alternative Dispute Resolution (ADR) mechanisms. In the execution of this mandate, NCIA offers accredited training programs for both Mediation and Arbitration geared

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towards the promotion of ADR as the preferred dispute resolution mechanism. NCIA accredits Mediators for both Domestic and International Mediation.

4.3 International Mediation Institute

Internationally, mediation training and accreditation are governed by standards developed by institutions such as the International Mediation Institute (IMI). The IMI sets globally recognized benchmarks for mediation training, certification, and practice, ensuring that mediators across different jurisdictions meet uniform standards of professionalism and competence. IMI's global accreditation system provides a benchmark for mediators to operate across borders, ensuring consistency in the quality of mediation services offered internationally.

5.0 Challenges of Mediation Training and Practice in Kenya

The current Mediation practice and training landscape in Kenya is facing a myriad of challenges as reflected in section 2.4.2 of the National ADR policy:

1. **Fragmented Institutional Development:** Different institutions involved in mediation have developed their own rules, curricula, and training programs, leading to a siloed approach. This has resulted in duplication of efforts, disparate standards, and a disjointed mediation practice across the sector.
2. **Lack of Standardization:** There is no unified framework for standards, making it difficult to ensure consistent quality across the board. This has caused variations in mediation training, certification, and the practice itself.
3. **Insufficient Trained Personnel:** The sector faces a shortage of trained mediators, limiting the availability of mediation services, especially in specialized areas like family and commercial disputes.
4. **Inadequate Specialist Expertise:** There is a lack of specialists with expertise in specific types of mediation (e.g., family, commercial sectors), limiting the ability to effectively address certain disputes that require a higher level of expertise.
5. **Need for a Legal Framework:** The absence of sufficient legal framework hinders the structured growth of mediation in Kenya, making it necessary to establish legal

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guidelines to support capacity development and ensure the standardization of practice.

7.0 The future of Mediation practice and Training in Kenya

The National ADR Policy aims to revolutionize alternative dispute resolution (ADR) in Kenya. Key strategies include:

1. **Strengthening the Institutional Framework:** The NCIA will serve as the national oversight body, responsible for establishing standards, training curricula, and certification processes for ADR practitioners. To enhance public awareness and accessibility, the NCIA will set up ADR Centres at the chief's camps. Additionally, the Judiciary will establish an ADR Centre to promote court-connected ADR and build the capacity of judicial officers in ADR practices. These initiatives will contribute to the overall development and effectiveness of the ADR sector in Kenya.
2. **Strengthening the Legal Framework**

   The National ADR Policy seeks to strengthen the legal framework for ADR in Kenya. This includes the enactment of a comprehensive ADR Act to provide a solid legal foundation for ADR practices. Additionally, a separate Mediation Act will be enacted to specifically guide mediation practices. The NCIA Act will be amended to align with the new policy, ensuring consistency and coherence. Furthermore, the NCIA will collaborate with relevant stakeholders to implement existing ADR laws and advocate for their inclusion in other sectors. To foster international cooperation and facilitate cross-border dispute resolution, the government is encouraged to ratify the Singapore Convention on Mediation. These legal reforms will enhance the legal environment for ADR in Kenya, promoting its use and effectiveness.
3. **Strengthening Linkages, Coordination, and Harmonization**

   The National ADR Policy promotes the principle of subsidiarity, allowing the ADR sector to operate independently and develop organically. It also establishes connections between the court system and non-court ADR mechanisms, fostering

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collaboration and ensuring a seamless transition between the two. To ensure quality and accountability, the NCIA will oversee the ADR sector, setting standards, enforcing disciplinary measures, and promoting ethical practices. By striking a balance between independence and oversight, the policy aims to create a robust and effective ADR system in Kenya.

4. **Quality and Standards of Practice**

   To ensure high standards of practice, the National ADR Policy mandates specialized training and certification for ADR practitioners. This will equip them with the necessary skills and knowledge to effectively handle disputes. Additionally, continuous professional development (CPD) programs will be implemented to keep practitioners updated with the latest developments in ADR. To facilitate the enforcement of ADR decisions, the judiciary will establish a special ADR registry for the quick registration of settlement agreements. These measures will enhance the credibility and enforceability of ADR decisions, promoting its wider acceptance and use.

5. **Capacity Building**

   To enhance capacity building in the ADR sector, the NCIA will organize comprehensive training and mentoring programs for ADR practitioners. Additionally, training programs will be developed for government officers involved in ADR to improve their understanding and application of ADR principles. To optimize resource utilization, the NCIA will assess existing state and SAGA infrastructure to identify potential venues for ADR services. Furthermore, an ADR guide will be developed to provide users with essential information about the ADR process, increasing public awareness and understanding. These initiatives will contribute to the overall development and effectiveness of the ADR sector in Kenya.

6. **ICT and Accessibility**

   To increase accessibility and efficiency, the NCIA will integrate ICT into ADR processes. This will facilitate online dispute resolution, remote mediation, and electronic case management, making ADR services more accessible to a wider range of users, including those in remote areas. Additionally, strategies will be

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developed to promote accessibility for persons with disabilities, ensuring that ADR services are inclusive and equitable. By leveraging technology and addressing accessibility issues, the National ADR Policy aims to make ADR more accessible to majority of Kenyans.

7. **Uptake and Research**

   To increase the uptake of ADR, the NCIA will promote the inclusion of ADR clauses in contracts and establish guidelines for mandatory pre-court ADR in specific cases. This will encourage parties to resolve disputes amicably before resorting to litigation. To support the continuous development of the ADR sector, the NCIA will initiate research programs to gather data and insights. Additionally, a knowledge management strategy will be implemented to share lessons learned, best practices, and innovative approaches, fostering a culture of learning and improvement within the ADR community. By promoting ADR and investing in research and knowledge management, the National ADR Policy aims to create a thriving ADR ecosystem in Kenya.

8.0 Conclusion

The future of Mediation in Kenya is promising, with the National ADR Policy laying a solid foundation for its growth and development. By strengthening the institutional framework, legal framework, capacity building initiatives, Linkages, Coordination, and Harmonization, Quality and Standards of Practice, ICT, uptake, and research the policy aims to create a robust mediation ecosystem.

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